

## 25STCV31538 25STCV31538

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-26

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Case Number: 25STCV31538 Hearing Date: June 26, 2026 Dept: I

25STCV31538 ZITSER FAMILY LAW GROUP,  
APC vs CHRISTOPHER J. O'BRIEN

June 26, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Demurrer

On October 29, 2025, Plaintiff

Zitser Family Law Group, APC ("Plaintiff") filed a complaint against Defendant Christopher J. O'Brien ("Defendant") and Does 1 to 20 alleging two causes of action: (1) breach of contract; and (2) common counts.

On March 5, 2026, Defendant entered default.

On April 20, 2026, Defendant, without leave of court, and while in default, filed a cross-complaint against Plaintiff and Does 1 to 20 alleging four causes of action: (1) breach of fiduciary duty; (2) professional negligence; (3) breach of contract; and (4) equitable indemnity/contribution.

On April 29, 2026, the parties filed a joint stipulation to set aside default.

On May 7, 2026, the Clerk filed a notice of rejection of the electronic filing of the stipulation, stating that

the stipulation incorrectly referenced a hearing in Department 47, despite this case being assigned to Department I.

Based on the foregoing, Defendant remains in default. Furthermore, the cross-complaint, filed by Defendant while in default, is void. (See *Talbott v. Ghadimi* (2025) 109 Cal.App.5th 967.) Accordingly, the Court strikes the cross-complaint pursuant to Cal. Code of Civ. Proc. § 436.

If the parties wish to set aside Defendant's default, then the parties must file a stipulation in this department.

Based on the foregoing, and having struck Defendant's cross-complaint, the Court finds the instant demurrer MOOT.

Moving party to give notice.